

HOUSE No. 1067

The Commonwealth of Massachusetts

PRESENTED BY:

Tommy Vitolo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act advancing water access equity through utility reporting requirement.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>1/15/2025</i>

HOUSE No. 1067

By Representative Vitolo of Brookline, a petition (accompanied by bill, House, No. 1067) of Tommy Vitolo relative to water access equity through utility reporting requirements. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 922 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act advancing water access equity through utility reporting requirement.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 22 of chapter 25 of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by inserting after subparagraph (e) the following
3 subparagraphs:-

4 (f) Public and private water utilities shall file quarterly reports with the executive office
5 of energy and environmental affairs regarding customer service data. The reports shall be public
6 record and shall include, but shall not be limited to the following information, disaggregated by
7 zip codes:

8 (1) The number of customers receiving service from a water utility provider;

9 (2) The number customer disconnection notices sent due to bill nonpayment;

(3) The number and dates of water shut offs that took place and average time between service disconnection due to non-payment and service reconnection;

(4) The number of customer accounts that became eligible for disconnection due to bill nonpayment but were not disconnected because of any legally mandated or voluntary suspension of disconnections due to the coronavirus 2019 pandemic;

(5) The number of customers charged late fees, penalties, reconnection fees, interest, and any other charge associated with late payment of a bill;

(6) The number of liens on real property placed, sold, or enforced due to nonpayment;

(7) The number of customers enrolled in deferred payment agreements at the end of each month, and the average length of the repayment term under those agreements;

(8) The number of customers that entered into, successfully completed, or defaulted from a deferred payment agreement;

(9) Customer assistance programs available to water consumers, including terms of eligibility, and available budget for each program;

(10) The number of customers receiving assistance under each customer assistance program at the end of each month, the total dollar amount of assistance provided, and the number of customers who were denied assistance; and

(11) The methods and contents of general communications by local utilities and public utilities to customers concerning their rights and available assistance programs if customers are unable to pay their bills in full.

30 (g) The executive office of energy and environmental affairs may adopt regulations
31 necessary to implement this section.

32 (h) Annually, not later than March 15, the executive office of energy and environmental
33 affairs shall report to the senate and house committees on ways and means and the joint
34 committee on environment, natural resources and agriculture data concerning the results of such
35 equity audit reports.

36 SECTION 2. This act shall take effect on January 1, 2024.